

24PR00504 Conservatorship of Liliana Gonzalez

County: santa-barbara

Division: Conservatorship

Department: 2 SM-Cook

Hearing date: 2026-08-18

Motion: Review: First Accounting and Report if Conservator

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Tentative Ruling: Conservatorship of Liliana Gonzalez

Case Number

24PR00504

Case Type

Conservatorship

Hearing Date / Time

Tue, 08/18/2026 - 09:00

Nature of Proceedings

Review: First Accounting and Report if Conservator

Tentative Ruling

Probate Notes:

Appearances required.

After review of the Supplement filed on June 22, 2026, the following is noted for the Court:

Discrepancy no. 1 – Many entries in Schedule C fail to list both payee AND purpose, and the purposes that are listed are not descriptive enough to give the Court information necessary to determine the reasonableness and necessity of the disbursements. Please submit supplement explaining the following purposes:

All "Hum Comphen" and "Humana" disbursements.

Resolution of Disc. no. 1 after review of Supplement: It is recommended the court find the discrepancy resolved, but issue warning that future unexplained disbursements will be found to be unnecessary, and charged against the conservator as a surcharge.

Discrepancy no. 2 – Several unusual expenditures were not explained. A supplement to the petition must be filed explaining the following unusual expenditures, including the nature and purpose of the expenditure in sufficient detail to allow the court to analyze the necessity of the expenditure (Prob. Code, § 1064(a)(2)):

DATE

PAYEE

AMOUNT PAID

Multiple dates

Ross, Marshalls, Amazon, JC Penny

\$3,050.21

Multiple dates

"caregiver expenses" paid to Jeannie Zoppo and Maria Alvarez

\$3,195

Multiple dates

"Transfer to Jeannie"

*Not calculated, but easily totals several thousand dollars.

Resolution of Disc. no. 2 after review of Supplement: It is recommended the court find the transfers to Jeanie unsubstantiated and unsupported by proper receipts and surcharge the total against the conservator. The duty to keep adequate records of the conservatorship estate is outlined in detail in the Handbook for Conservators, that Conservator acknowledged receipt of on August 26, 2024. According to that publication:

If you reimburse yourself for expenses paid from your own funds, describe to whom you paid the funds on behalf of the conservatee, the amount of each expenditure, and what good or service was purchased for the conservatee. You must obtain and retain receipts for all of these expenditures and organize them so you can retrieve them if you are required to show them to the court.

(Handbk. Of Constrs. at p. 5-66.)

Discrepancy no. 3 – Petitioner spent \$12,592.20 on groceries and \$1,485.49 on restaurants for the accounting period. This is excessive for one person and indicates the conservator is using the estate to provide food for more than just the conservatee. Several of the restaurant charges show the purchase was for more than one person. According to the USDA Food Plans, the Cost of Food for one person during the accounting period is \$233-258 per month.

(<https://www.fns.usda.gov/cnpp/usda-food-plans-cost-food-monthly-reports>) This means the amount the conservator exceeded the cost of food for the Conservatee was by 3 times the recommended budget (\$4,291.40). Supplement should explain why this occurred, and how the conservator plans to remedy this issue in the future.

Resolution of Disc. no. 3 after review of Supplement: It is recommended the court find this discrepancy resolved, but warn the Conservator that any future failures to account for an appropriate food expenditure will be surcharged against the conservator.

Discrepancy no. 4 – Title on account does not reflect the conservatorship. (CRC 7.1059 (b)(7).) The account is currently held in joint tenancy between the Conservator and Conservatee. The Account must be held in care of the Conservatee only. Supplement must show that title to the account was changed to reflect being held in the name of the conservatorship (e.g. Jeannie Zoppo, Conservator of; Jeannie Zoppo in care of Liliana Gonzalez, Conservatee, etc.)

Resolution of Disc. no. 4 after review of Supplement: It is recommended the court find this matter resolved.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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